

February 3, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 10795
(EIGHTH REVISION)

EXPIRATION DATE: December 31, 2009

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: ExxonMobil Oil Corporation
Fairfax, VA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the loading of tank cars coupled in a series, with the bottom discharge outlet caps in place on all cars except the first and last, the setting of the hand brake and the blocking of a wheel in both directions, on the first and last cars of a series of coupled tank cars, prior to unloading. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.31(b)(1) and 174.67(a)(2).
5. BASIS: This special permit is based on the application of ExxonMobil Oil Corporation dated October 7, 2005, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Fuel oil (No. 1,2,4,5, or 6)	Combustible liquid	NA1993	III
Gasoline	3	UN1203	II

7. SAFETY CONTROL MEASURES:

PACKAGING - Prescribed packagings are DOT and non-DOT Specification tank cars authorized for the materials in paragraph 6 indicated above. Packagings must be equipped with efficient hand brakes which must conform with the Railroad Safety Appliance Standards in 49 CFR Part 231.

8. SPECIAL PROVISIONS:

a. The hand brake must be set and at least one wheel blocked in both directions on the first and last car provided the grade of the track is less than or equal to 0.5 percent.

b. For grades exceeding 0.5 percent, the following table shall be used to determine the percentage of additional hand brakes to be applied:

Grade (Percent)	Percentage of cars to have hand brakes applied
$> 0.5 \leq 0.6$	17
$> 0.6 \leq 0.7$	20
$> 0.7 \leq 0.8$	23
$> 0.8 \leq 0.9$	26
$> 0.9 \leq 1.0$	29

February 3, 2006

c. Packagings permanently marked 'DOT-E 10795', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 10795'.

d. Shipping papers displaying 'DOT-E 10795' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident such as derailment of exterior tank car damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, Assurance & Compliance
RRS-12 (Mail Stop 25)
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 493-6247 or (202) 493-6229

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

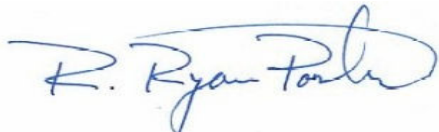
February 3, 2006

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: FRA/dl